

Tamil Nadu Estates (Abolition and Conversion Into Ryotwari), Estates Land (Reduction of Rent) and Estates (Supplementary) (Amendment) Act, 1958

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State of Tamilnadu- Act

Tamil Nadu Estates (Abolition and Conversion Into Ryotwari), Estates Land (Reduction of Rent) and Estates (Supplementary) (Amendment) Act, 1958

TAMILNADU

India

Tamil Nadu Estates (Abolition and Conversion Into Ryotwari), Estates Land (Reduction of Rent) and Estates (Supplementary) (Amendment) Act, 1958

Act 34 of 1958

Published on 27 December 1958

Commenced on 27 December 1958

[This is the version of this document from 27 December 1958.]

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Tamil Nadu Estates (Abolition and Conversion Into Ryotwari), Estates Land (Reduction of Rent) and Estates (Supplementary) (Amendment) Act, 1958

(Tamil Nadu Act

34 of 1958

)

Received the assent of the President on the 27th December 1958 and first published in the Fort St. George Gazette, dated the 7th January 1959.

An Act further to amend the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Estates (Abolition and Conversion into Ryotwari) Act, 1948 and the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Estates Land (Reduction of Rent) Act, 1947, and to amend the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Estates (Supplementary) Act, 1956.

Whereas it is expedient further to amend the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Estates (Abolition and Conversion into Ryotwari) Act, 1948 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XXVI of 1948), and the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Estates Land (Reduction of Rent) Act, 1947 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XXX of 1947), and to amend the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Estates (Supplementary) Act, 1956 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XXX of 1956), for the purposes hereinafter appearing;

Be it enacted in the Ninth Year of the Republic of India as follows: -

1.

Short title and commencement.

(1)

This Act may be called the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Estates (Abolition and Conversion into Ryotwari) Estates Land (Reduction of Rent) and Estates (Supplementary) (Amendment) Act, 1958.

(2)

(a)

Sections 5, 6 and 7 shall be deemed to have come into force on the 19th April 1949.

(b)

Clause (i) of sections 2, 13 and 14 and sections 10, 12 and 15 and subsection (1) of section 16 shall come into force on such [date]

[Sections 10 and 12 and sub-section (1) of section 16 came into force on the 18th day of February 1959 and clause (i) of sections 2, 13 and 14 and section 15 came into force on the 1st day of July 1959.]

as the Government may, by notification, appoint and different dates may be appointed for different sections.

(c)

The provisions of this Act other than those specified in clauses (a) and (b) shall come in to force at once.

2.

to 8.

[The amendments made by these sections have been incorporated in the Tamil Nadu Estates (Abolition and Conversion into Ryotwari) Act, 1948 (Tamil Nadu Act XXVI of 1948).]

9.

Omission of section 56, [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XXVI of 1948.

(1)

[Incorporated in the principal Act].

(2)

Any legal proceedings pending by virtue of section 56 immediately before the date of the commencement of this section, whether before the Settlement Officer or the Tribunal shall, by virtue of this section, abate on the date of such commencement.

10.

to 12.

[The amendments made by these sections have been incorporated in the Tamil Nadu Estates (Abolition and Conversion into Ryotwari) Act, 1948 (Tamil Nadu Act XXVI of 1948).]

13.

[The amendment made by section 13 has been incorporated in the Tamil Nadu Estate Land (Reduction of Rent) Act, 1947 (Tamil Nadu Act XXX of 1947).]

14.

[The amendment made by section 14 has been incorporated in the Tamil Nadu Estate Land (Reduction of Rent) Act, 1947 (Tamil Nadu Act XXX of 1947).]

15.

Transitional provisions.

(1)

Any proceedings pending immediately before the date of commencement of clause (i) of section 2 of this Act before any Tribunal constituted under sub-section (1) of section 8 of the principal Act and having jurisdiction over any estate or part thereof shall stand transferred to the Tribunal constituted under the same sub-section, after such commencement and having jurisdiction over the same estate or part thereof.

(2)

Any proceeding pending immediately before the date of the commencement of clause (i) of section 13 of this Act before any Tribunal constituted under sub-section (1) of section 3-B of the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Estates Land (Reduction of Rent) Act, 1947 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XXX of 1947) and having jurisdiction over any village or group of villages shall stand transferred to the Tribunal constituted under the same sub-section after such commencement and having jurisdiction over the same village or group of villages.

(3)

Any proceeding pending immediately before the date of commencement of clause (i) of section 14 of this Act before any Tribunal constituted under subsection (1) of section 5 of the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969]

Estates (Supplementary) Act, 1956 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969 as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act XXX of 1956) and having jurisdiction over any area shall stand transferred to the Tribunal constituted under the same sub-section after such commencement and having jurisdiction over the same area.

16.

Savings.

(1)

Any appeal or application for revision which has been disposed of before the date of the commencement of section 10 of this Act on the footing that such appeal or application was preferred after the expiry of the period prescribed under the principal Act, shall, on application preferred within two months from the date of such commencement, by any person aggrieved, be re-opened and disposed of in accordance with the provisions of the principal Act as amended by section 10 of this Act.

(2)

The Government or any authority or officer authorised by the Government in this behalf may, either suo motu at any time or on the application preferred within two months from the date of publication of this Act in the [Fort St. George Gazette] [Now the Tamil Nadu Government Gazette.]

by any institution to which payment has been made before the date of such publication under sub-section (2) of section 38 of the principal Act, re-open any proceeding relating to such payment and dispose of such proceeding in accordance with the said sub-section as amended by section 7 of this Act.

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